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Case Number: 26STCV09090 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

EDMOND YERISSIAN,

Petitioner,

v.

MOBILITAS INSURANCE COMPANY AND BLUE STAR INSURANCE COMPANY (AKA BLUE STAR CLAIMS, LLC),

Respondents.

Case No: 26STCV09090

Hearing Date: June 30, 2026

Calendar Number: 12

Petitioner
Edmond Yerissian moves for an order compelling Respondents Mobilitas Insurance Company and United States Fire Insurance Company to participate in one consolidated

arbitration proceeding to address the petitioner's insurance claims arising from a 2023 motor vehicle accident.

The motion GRANTED IN PART and DENIED IN PART as follows.

The request to compel respondents to a single, consolidated arbitration is GRANTED.

The request to appoint one of Petitioner's recommended arbitrators is DENIED. The parties are ordered to meet and confer and file within five (5) days of this ruling a list of persons from which the Court can select five (5) nominees as required by Code of Civil Procedure section 1281.6.

Background

This is an action involving disputes over uninsured/underinsured motorist insurance ("UM/UIM") and occupational accident insurance ("OAI") coverage.

On March 19, 2026, Petitioner Edmond Yerissian ("Petitioner") commenced this action by filing a "Petition to Open Unlimited Civil Court File to Establish Jurisdiction Over Uninsured/Underinsured Motorist Arbitration" (the "Petition") against Respondents Mobilitas Insurance Company ("Mobilitas") and United States Fire Insurance Company ("USFIC"), which was erroneously sued as Blue Star Insurance Company aka Blue Star Claims LLC.

The Petition alleges the following. Mobilitas issued an insurance policy with UM/UIM coverage to Petitioner to cover him while he was driving for the rideshare service Lyft. (Petition, ¶ 3.) On the other hand, USFIC issued Petitioner an OAI policy "providing coverage for injuries sustained while Petitioner was engaged in rideshare driving services, including while driving for Lyft." (Id. ¶ 4.) "Both Policies … contain an arbitration provision requiring that disputes regarding benefits owed under the policy be resolved through binding arbitration." (Id. ¶ 5.) "Petitioner suffered injuries in a motor vehicle accident on March 4, 2023, while driving in the course and scope of rideshare services for Lyft.” (Id. ¶ 6.) “Pursuant to the arbitration provision in the policy, Petitioner served each Respondent with a Demand for Arbitration seeking enforcement of the contractual benefits owed” for the injuries, medical expenses, and wage loss he sustained as a result of the accident. (Id. ¶¶ 7, 8.) However, “Respondents have failed and refused to cooperate in proceeding with arbitration, making court intervention necessary to enforce the arbitration agreement.” (Id. ¶ 10.)

Petitioner initially filed his Motion to Compel a Single Joint Arbitration Proceeding on April 14, 2026.

On May 15, 2026, Petitioner filed the instant Amended Motion to Compel a Single Joint Arbitration Proceeding (“MTCA”).

On June 16, 2026, Mobilitas filed a partial opposition to the MTCA.

On June 18, 2026, USFIC filed its opposition to the MTCA and a separate opposition to the Petition.

On June 22, 2026, Petitioner filed his replies along with a request for judicial of other trial court orders in support of his MTCA. On the same day, USFIC filed its objection to the request for judicial notice.

Legal Standard

General Principles

Code of Civil Procedure (“CCP”) section 1281.2 provides, in relevant part, that “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists,” unless one of three enumerated exceptions applies. (McIsaac v. Foremost Ins. Co. Grand Rapids, Michigan (2021) 64 Cal.App.5th 418, 422 (McIsaac).)

“‘The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.' [Citation.]" (Tornai v. CSAA Ins. Exchange (2023) 98 Cal.App.5th 974, 981–982 (Tornai).)

"'[I]n ruling on a petition to compel, the court must determine whether the parties entered into an enforceable agreement to arbitrate that reaches the dispute in question, construing the agreement to the limited extent necessary to make this determination.' [Citation.] If such an agreement exists, the court must ordinarily order the parties to arbitration." (Tornai, supra, 98 Cal.App.5th at pp. 981–982.)

"California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration." (Coast Plaza Doctors Hospital v. Blue Cross of California (2000) 83 Cal.App.4th 677, 686.) "This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (Ibid. [internal quotations omitted].)

If arbitration is compelled,
"the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

Arbitration of UM/UIM Coverage Disputes

"Insurers are required by law to provide coverage for bodily injury or wrongful death caused by UM and UIM motorists. (Ins. Code, § 11580.2; [citations]).)" (McIsaac, supra, 64 Cal.App.5th at p. 422.)

"Insurance Code section 11580.2, subdivision (f), which has been incorporated into every automobile insurance policy by law, 'provides that if the insurer and insured cannot agree whether the insured is legally entitled to recover damages from an uninsured motorist and the amount of such damages, those issues shall be determined by arbitration.' [Citations.]" (McIsaac, supra, 64 Cal.App.5th at p. 423.)

Consolidation

of Arbitration Proceedings

"A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:

(1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the same transactions or series of related transactions; and

(3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators."

(Code Civ. Proc., § 1281.3.)

Discussion

As an initial matter, the Court sustains USFIC's objections to Petitioner's request for judicial notice filed with Petitioner's MTCA reply papers. As the respondent argues, other trial court orders are not binding. In addition, courts "'may not take judicial notice of the truth of hearsay statements in decisions and court files.'" (South Lake Tahoe Property Owners Group v. City of South Lake Tahoe (2023) 92 Cal.App.5th 735, 752 [internal quotation removed)].) Therefore, Petitioner's request for judicial notice is denied.

Request to Compel Consolidated Arbitration

Petitioner moves to compel Mobilitas and USFIC (collectively, "Respondents") to submit to a single, consolidated arbitration proceeding, arguing that consolidation is proper because (1) both carriers are bound by arbitration clauses in their respective policies; (2) claims disputes with Respondents arise from the same accident and injuries; (3) each carrier's position depends on the other carrier's alleged responsibility; and (4) Petitioner risks inconsistent rulings and indefinite delay absent court intervention. (MTCA, p. 5:12-16.)

Respondents do not dispute that the underlying insurance policies, individually, contain enforceable arbitration agreements.

In addition, Mobilitas does not oppose Petitioner's request for consolidation.

Instead, the respondent argues that if the Court denies the request for consolidation, then Petitioner's arbitration against USFIC should be ordered to proceed first before Petitioner's arbitration against MTCA. According to the respondent, California law requires a claimant to resolve their OAI claim first before proceeding with UM/UIM arbitration. In addition, the law and the Mobilitas policy expressly provide that Mobilitas may offset any UM payment by the amount of the OAI payout. Therefore, the respondent must necessarily know the final amount of the OAI payout prior to the UM arbitration. However, Mobilitas also states that those arguments "will be moot if the arbitrations against Mobilitas and [USFIC] are consolidated, as the UM and OAI claims would be resolved concurrently, avoiding the possibility of the concerns raised [in those arguments]." (Mobilitas MTCA Opp., p. 4:24-26.)

On the other hand, USFIC opposes the MTCA on several grounds. The Court addresses the respondent's main arguments not necessarily in the order presented in its papers.

USFIC argues that a petition to compel UIM/UM arbitration under Insurance Code section 11580.2 cannot be used to compel contractual arbitration under CCP section 1281.2. According to the respondent, the former "establishes a specific, mandatory arbitration procedure for disputes arising under uninsured and underinsured motorist coverage," while the latter "provides the general mechanism for compelling contractual arbitration." (MTCA USFIC Opp., p. 8:24-27.) USFIC further contends that "[t]he California Supreme Court has recognized the UIM/UM arbitration under section 11580.2 is 'statutory,' not 'contractual' in character. (Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1199 [Bouton].)" (Id. at p. 9:1-3.)

The Court disagrees with USFIC on that point. In Pilimai v. Farmers Ins. Exchange Co. (2006) 39

Cal.4th 133 (Pilimai), the California Supreme Court reiterated its holding in Mercury Ins. Group v. Superior Court (1998) 19 Cal.4th 332 (Mercury Insurance) that "an uninsured motorist arbitration, although mandated by statute, nonetheless is a contractual arbitration subject to the provisions of the [California Arbitration Act (CAA)], including Code of Civil Procedure section 1281. Nor is there anything in the language of Code of Civil Procedure section 1281 that suggests a contractual arbitration provision in an insurance policy that is statutorily mandated is outside the scope of the CAA." (Pilimai, supra, 39 Cal.4th at p. 141.) The portion of the Bouton case that USFIC cites does not claim, as the respondent, argues that arbitration under Insurance Code section 11580.2 was statutory instead of contractual. If the Supreme Court had so held, it would have abrogated its principle in Mercury Insurance, which it did not and has not done. Instead, the Court held that in UM/UIM arbitration proceedings, an arbitrator may determine only liability, damages, and other issues that the parties have agreed to arbitrate; the UM/UIM arbitrator may not determine other issues in that proceeding. (See Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1200 ["To the extent that [one California Supreme Court case, Van Tassel v. Superior Court (1974) 12 Cal.3d 624, 627] improperly permitted an arbitrator to determine issues other than liability and damages—the issues mandated by section 11580.2, subdivision (f) to be arbitrable, and the only issues the parties agreed to arbitrate—it is overruled"].) Bouton is inapplicable because Petitioner is not moving for an order compelling an arbitrator to determine non-statutory or non-contractual issues in a single, UM/UIM arbitration proceeding between Mobilitas and Petitioner. Instead, he is seeking an order consolidating the Mobilitas-Petitioner UM/UIM arbitration with another separate, USFIC-Petitioner OAI arbitration.

USFIC also argues that OAI arbitration cannot be consolidated with UM/UIM arbitration because they provide different coverages and address different categories of loss that neither overlap nor are duplicative.

According to the respondent, "UIM/UM coverage stands in the shoes of the tortfeasor and provides the insured with the full spectrum of compensatory damages that would be recoverable in a personal injury action, including general damages for pain, suffering, and loss of enjoyment of life; past and future medical expenses; past and future loss earnings; and all other consequential losses flowing from the injury." (MTCA USFIC Opp., p. 7:10-13.)

In contrast, USFIC contends, the OAI policy "pays only the reasonable charges for medical services and supplies, and only where those services have been ordered by a physician for the diagnosis or treatment of an occupational accident and are deemed medically necessary. Critically, the OAI policy further restricts coverage by imposing a maximum benefits period of 104 weeks from the date of injury, meaning that regardless of the insured's medical needs, the policy's obligation to reimburse medical expenses expires after two years. …. It is not a tort-damages substitute. It is a temporally limited medical expense reimbursement mechanism, constrained by clinical prerequisites and a fixed durational cap that bears no relationship to the full extent of the insured's losses." (MTCA USFIC Opp., p. 7:19-8:1 [emphasis removed].)

However, USFIC has not cited (and this Court has not found) any law or statute holding that OAI and UM/UIM arbitration proceedings cannot be consolidated under CCP section 1281.3. The statute only exempts professional negligence claims against a health care provider brought under CCP section 1295 from consolidation. (See Code Civ. Proc., § 1281.3 ["This section shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295"].) The statute does not contain a similar exemption for OAI coverage disputes. Further, the Supreme Court in Pilimai again affirmed its holding in Mercury Insurance "that because a contractual arbitration proceeding could be consolidated with a pending civil case involving a third party, so too could an uninsured motorist arbitration." (Pilimai, supra, 39 Cal.4th at p. 141.) Here, USFIC admits that an arbitration between it and Petitioner would be a "contractual" arbitration proceeding. (See e.g., MTCA USFIC Opp. 9:6-10 [arguing that the OAI policy arbitration "is governed by the general arbitration provisions of Code of Civil Procedure §§ 1281 through 1281.95"].) Therefore, under Pilimai and Mercury Insurance, Petitioner's UM/UIM policy arbitration can be consolidated with the OAI policy arbitration under CCP section 1281.3 as long as the requirements of the statute are satisfied.

USFIC also argues that Petitioner has not satisfied the requirements of consolidation under CCP section 1281.3 because (1) the statute requires a showing of common issues not just a common accident, (2) the two insurance policies address different categories of loss and serve different purposes, (3) the arbitration proceedings will require resolution of different legal and factual questions, and (4) consolidation would prejudice respondents and complicate rather than streamline the proceedings.

As stated previously, consolidation can be ordered when: (1) separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; (2) the disputes arise from the same transactions or series of related transactions; and (3) there is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.

Here, USFIC does not dispute that the first two requirements are satisfied.

The Court agrees with Petitioner that the third requirement has also been satisfied. As Petitioner argues, “both arbitrations arise from the same crash and will necessarily litigate the same predicate questions: whether the accident caused Petitioner’s injuries; the nature, reasonableness, and necessity of medical treatment; and the amount of Petitioner’s recoverable losses. Those overlapping determinations will drive both any OAI medical-expense reimbursement and any UM/UIM damages award, with offsets addressed in the consolidated forum.” (Reply, p. 2:8-12.) USFIC would want this Court to believe that its arbitration with Petitioner is limited only to “medical expense reimbursement.” However, USCIF has not disclaimed any right to contest the extent of Petitioner’s injuries and whether those injuries were caused by the underlying accident. Indeed, USCIF itself argues that Petitioner’s coverage will be limited to reasonable, medically necessary medical services and supplies ordered by a physician for the diagnosis or treatment of an occupational accident. To make those determinations, an arbitrator will necessarily need to determine to what extent Petitioner’s injuries were caused by the accident, an issue that is common under both the OAI and UIM policy.

Notwithstanding its other arguments, USFIC also argues that the Court should order a sequential instead of a consolidated arbitration because: (1) the OAI policy will determine the amount of special damages paid under the policy and that figure will be necessary for the Mobilitas arbitration to properly calculate offsets; (2) sequential arbitration avoids confusion; (3) Respondents maintain separate claims process and sequential arbitration would them to keep those processes separate; and (4) allowing OAI claim to be resolved first is consistent with the statutory framework's recognition that UIM/UM recover is often calculated after accounting for other applicable coverages . (MTCA, p. 12:6-11.)

USFIC, however, has not cited any law that allows the Court to issue an order compelling a sequential arbitration proceeding.

In addition, the Court has found that both arbitrations will necessarily involve adjudication of common issues of fact.

Given that Petitioner has satisfied the requirements for consolidation under CCP section 1281.3, the Court grants Petitioner's request to compel Respondents to arbitration and to consolidate the proceedings.

Request for Appointment of Arbitrator

Petitioner also requests an order appointing one of his three recommended neutral arbitrators. (MTCA, p. 5:24-26 [recommending Hon. Michael Latin (Ret.) of Signature Resolution, David Karen, Esq. of Judicate West, and R.A. Carrington, Esq."].)

CCP section 1281.3 states: "If the applicable arbitration agreements name separate arbitrators, panels, or tribunals, the court, if it orders consolidation, shall, in the absence of an agreed method of selection by all parties to the consolidated arbitration, appoint an arbitrator in accord with the procedures set forth in Section 1281.6." (Ibid.)

CCP section 1281.6 in turn states in relevant part: "When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees."

Pursuant
to the above statutes, the Court denies Petitioner's request to appoint one of his recommended neutrals to serve as arbitrator. Instead, the Court shall order the parties to meet and confer and file a joint list of persons from which the Court can select an arbitrator.